

PROMISING RETURN PRACTICES

PRE-RETURN GERMANY - I

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Rodrigo Bolaños Suárez (bicc)
Zeynep Sahin-Mencutek (bicc)
Soner Barthoma (Uppsala University)



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Name of practice	Duldung	
Dates	Toleration for employment 1 Jan 2020 Toleration for training was first implemented in 2016	
Target group	Immigrants (wide group)	
Geographic Scope	Country	Germany
	Regions	Europe
	Sub Region	North Europe
Actor(s)	Federal Employment Agency Foreign Authorities	
Return Stages	Pre-Return	
Challenge addressed	Alternatives to Return	
Principles referred (implicit or explicit)	Human-rights–based approach Do-no-harm	

SUMMARY

The “Duldung” is a toleration of stay for persons with an order to leave the country under the German Residence Act (Sec. 60a). Deportation of the migrant is suspended for a defined period (usually 3-6 months), but this is not equivalent to a regular status, as the so-called ‘obligation to leave the country’ remains effective, leaving the migrants in a “limbo” status (Ince-Beqo, 2024; Schurade et al., 2025). Deportation may be temporarily suspended on urgent humanitarian, personal, or public interest grounds.

There are several forms of toleration linked to employment or training.

(i) The *Ausbildungsduldung* (Sec. 60c Residence Act) applies to persons enrolled in a vocational training programme; deportation is suspended for the duration of the training, and upon successful completion and securing employment in the trained profession, a two-year residence permit may be granted.

(ii) The *Beschäftigungsduldung* (Sec. 60d Residence Act) is available to those who have been lawfully employed for at least 12 months and meet further statutory conditions, including a basic spoken command of the German language. Holders of this form of toleration are protected from deportation, and the status may be extended to certain family members under defined conditions and can provide a pathway to a residence permit after 30 months.

The Duldung “light” (Sec. 60b Residence Act) applies when deportation is suspended due to the individual’s failure to cooperate in establishing identity; it entails additional restrictions, including a work prohibition and exclusion from pathways linked to training or employment

BENEFITS/IMPACTS AND SHORTCOMINGS

In 2025, 185,868 persons were tolerated in Germany, 39,642 were issued this “status” in 2025 for the first time; however, 105,162 resided in Germany for three or more years and 58,958 even for six or more years (Deutscher Bundestag, 2025b, p. 30).

The concept of toleration is often viewed as a potentially promising practice (Hendow & Qaisrani, 2024, pp. 52 et seq.; Catelli and Levoy, 2025, p. 4), but it does have its flaws. This temporary status allows migrants to stay legally in Germany and provides them with access to certain social and welfare rights. The German government has established comprehensive regulations regarding toleration, offering this temporary residency to individuals in various situations, more so than many other EU countries. By providing these regulations, the government ensures that migrants are not left unsupported after their asylum applications are rejected, allowing them the possibility of regular residence.

Migrants are required to renew their toleration status at regular intervals for as long as it remains in effect. This situation places them in a de facto limbo, restricting their ability to settle in Germany due to the non-permanent nature of this status. Depending on the specific type of toleration, the renewal may be needed every few months. This often results in a "chain of toleration" (Kettenduldung), which allows migrants to extend their stay in Germany, but with limited rights. The grounds for extending toleration are reassessed regularly and are influenced by political developments in the country of origin as well as domestic electoral and immigration policy. Some civil society organizations advocate for the issuance of formal residence permits to help migrants move beyond the toleration status (Hendow & Qaisrani, 2024, p. 53).

KEY LESSONS

Intermediate forms of toleration create complex legal categories. Across contexts, the use of multiple interim statuses between lawful residence and return can generate administrative complexity and inconsistent rights regimes. In Germany, several distinct forms of toleration exist, making it the European country with the largest number and broadest range of "tolerated" foreigners. This illustrates how extensive categorisation can complicate both governance and migrants' pathways out of temporary status.

Prolonged toleration can entrench a structural limbo. Where toleration becomes the default solution for individuals with a pending or unenforceable return, it risks producing long-term uncertainty. This situation limits access to services, inhibits integration planning, and constrains participation in socio-economic life. The German case shows how toleration, although granting a lawful stay, can still deprive individuals of a tangible integration perspective when renewal is uncertain, and rights remain restricted.

Toleration can function as an open-ended mechanism of limited rights. In any system where temporary stay is repeatedly renewed without offering a credible pathway to regularisation or return, toleration may operate as a de facto form of prolonged disenfranchisement. Research on Germany (e.g. Schütze, 2025)

highlights how toleration can become temporally indeterminate, underscoring the need for safeguards that prevent indefinite reliance on exceptional measures.

RECOMMENDATIONS

Establish clear legal pathways out of prolonged toleration. States should consider mechanisms that enable individuals with long-term toleration statuses to transition into more secure residence permits, thereby reducing dependence on repeated short-term extensions and supporting greater stability and integration. In the case of Germany, the Opportunity Residence Permit (Chancenaufenthalt), explained below, illustrates an approach that offers a structured route for tolerated foreigners to move out of cycles of repeated "Duldung" renewals, provided they meet defined criteria.

REFERENCES

Ince-Beqo, G., Ambrosini, M., Torres Chedraui, A. M., Conte, C., McLean, A. (2024). Wp6 Contribution To D9.5 And D9.4: Inventory Of Existing Alternative To Returns Policies D. 6.1. https://fair-return.org/wp-content/uploads/2024/08/D6.1_M15_Working-paper_web.pdf

Peitz, L., Carwehl, A.-K. (2025): BAMF-Kurzanalyse. Zwischen Duldung und Bleiberecht: Wie und für wen wirkt das Chancen-Aufenthaltsrecht? Bundesamt für Migration und Flüchtlinge. https://www.bamf.de/SharedDocs/Anlagen/DE/Forschung/Kurzanalysen/kurzanalys_e3-2025-chancen-aufenthaltsrecht.pdf?__blob=publicationFile&v=8 Catelli C. and Levoy M. (2025), Evaluating Promising Practices In the Field of Alternatives to Return Policies, MORE Project, 2025. https://www.moreproject-horizon.eu/sdc_download/1108/?key=7af41ayqwjlmuivr0nky3dlsirqso7

Deutscher Bundestag, (2023). Antwort der Bundesregierung auf die Kleine Anfrage der Abgeordneten Clara Bünger et al. Drucksache 20/5795 Abschiebungen und Ausreisen 2022, Drucksache 20/5795, 24.02.2023

Hendow, M., Qaisrani, A., (2024). Pathways and Policy Evolution: Comparing national laws and policies addressing irregular migrants. MlrreM Working Paper 6/2024. Zenodo. <https://doi.org/10.5281/zenodo.10782561>

Schütze, Theresa (2025). Duldung. Projekt: Inventar der Migrationsbegriffe (<https://www.migrationsbegriffe.de/>), https://www.migrationsbegriffe.de/media/pages/artikel/duldung/5604af1787-1736961558/inventar_duldung_2025_schuetze.pdf

Bundesministerium der Justiz (BMJ). Act on the Residence, Economic Activity and Integration of Foreigners in the Federal Territory (Residence Act – AufenthG). https://www.gesetze-im-internet.de/englisch_aufenthg/index.html#gl_p1380